

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 7/14/2026.
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: ***April Guevara v. General Motors LLC***
Superior Court Case No. 25CECG01184

Hearing Date: July 15, 2026 (Dept. 503)

Motion: Plaintiff, April Guevara's Motion for Payment of Attorney Fees and Reimbursement of Costs and Expenses

Tentative Ruling:

To grant the motion for attorney fees and costs in the amount of \$17,367.61. Payment shall be made by defendant General Motors, LLC to Zand Law, APC., within 30 days of the clerk's service of this minute order.

Explanation:

Plaintiff, April Guevara's ("Guevara" or "plaintiff") counsel Zand Law, APC. ("Counsel" or "Zand Law") seeks \$22,179.87 in fees and costs including (1) \$19,245.00 in lodestar fees, including anticipated hours; (2) an additional \$2,934.87 in incurred costs and expenses, against General Motors, LLC ("defendant" or "GM.")

Right to Recovery Attorney Fee's

An award of attorney fees is proper when authorized by contract, statute, or law. (Code Civ. Proc. §§ 1032, subd. (b), 1033.5, subd. (a)(10).) Here, the Song-Beverly Act authorizes a buyer "to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

Amount of Attorney's Fee's

A buyer prevailing under the Song-Beverly Act may recover "reasonable" attorney fees and costs as determined by the Court. (Civ. Code § 1794, subd. (d).) "The burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable." (*Gonzalez v. Santa Clara County Dept. of Social Services* (2017) 9 Cal.App.5th 162, 169.) In determining a reasonable fee award, the Court begins with the lodestar method of calculation, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Karton v. Ari Design & Construction, Inc.* (2021) 61 Cal.App.5th 734, 744; *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095–1096.)

Here, plaintiff's counsel seeks to recover \$17,685 in lodestar fees for 39.3 hours of work, billed at the following rates:

	Title	Rate Per Hour	Total Hours	Total Amount Billed
David Bijan Zand	Attorney	\$450	39.3	\$17,685
TOTAL		-		\$17,685

Reasonable hourly compensation is the "hourly prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type" (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133, "*Ketchum*".) Ordinarily, "the value of an attorney's time . . . is reflected in his normal billing rate." (*Mandel v. Lackner* (1979) 92 Cal.App.3d 747, 761.)

Where a party is seeking out-of-town rates, he or she is required to make a "sufficient showing...that hiring local counsel was impractical." (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1244.) The rates for plaintiff's counsel are commensurate with Central California's going rates for comparable consumer litigators. Plaintiff's counsel rates are: \$450 for David Bijan Zand (lawyer specializing in the Song-Beverly Consumer Warranty Act, with over 75 representative cases in lemon law). (Zand Decl., ¶11.) Plaintiff's Counsel has demonstrated his rates are commensurate with those of the Central Valley. (Zand Decl., Ex. B.) Furthermore, GM did not oppose.

Hours Expended

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.' " (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488, citing *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.) The court will exercise its discretion in determining if the Plaintiff's attorney fees request is reasonable by considering the following factors: the nature of litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623.)

Plaintiff's counsel recorded 39.3 hours of attorney time. This figure does not include 3.5 anticipated hours, that are addressed below.

GM points to many activities as being overbilled, noting that plaintiff's counsel relied on templates and forms in preparing the complaints and discovery responses, as well pointing out that some of the time was purely clerical. (GM Opposition, pgs. 4:22-6:18.) The Court reviewed the entries to which GM objects and finds some of the fees to be above the accepted norm. For instance, the Court reduced Zand's time in drafting a templated complaint. The Court also found some of Zand's efforts clerical, pertaining some of the tasks recorded by Zand were for scheduling, such as Zand billing 1.9 hours pertaining to the "Vehicle Surrender Coordination & Disbursement of Settlement Funds." The Court further reduced some of Zand's time for the Case Management Conference

recorded on October 14 and 21, 2025 as excessive. Accordingly, the Court reduced attorney time to 28.75 hours.

Anticipated Hours

Additional Time Opposing this Motion

In general, a party is entitled to all fees reasonably incurred, including the fees for time expended in obtaining a reasonable fee award. (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 631; *McKenzie v. Ford Motor Co.* (2015) 238 Cal.App.4th 695, 703 [‘The fees incurred in preparing a motion for fees are properly includable in the award’].) This may reasonably include reasonable anticipated time in connection with preparing a reply to the opposition and attending the hearing, which would not have been incurred at the time of the filing of the notice of motion, and the fees will not be disallowed on the ground they are anticipated fees.

Plaintiff’s counsel expected to spend 3.5 hours, in connection with (1) reviewing Defendant’s Opposition to Plaintiff’s Motion; (2) preparing the Reply brief to Defendant’s Opposition; and (3) attending the hearing on Plaintiff’s Motion. (Zand Decl., ¶16.)

The Court finds the anticipated time of 3.5 hours reasonable.

Costs

Plaintiffs include a request for an award of costs in the amount of \$2,934.87. Civil Code section 1794, subdivision (d) provides that a plaintiff may recover “the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” As *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42 explained, “[T]he Legislature intended the phrase ‘costs and expenses’ to cover items not included in ‘the detailed statutory definition of “costs” ’ set forth in Code of Civil Procedure section 1033.5.” (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42.)

Defendant opposes these expenses in the amount of \$1,616.64 on the grounds that plaintiff cannot substantiate them because he did not file a verified memorandum of costs. (GM’s Opposition, pg. 7:4-73-4.)

Although plaintiff did not file a verified memorandum of costs under rule 3.1700(a)(1), attorney Zand’s sworn supplemental declaration provides that the expenses incurred plaintiff’s counsel was \$2,855.11, which is less than the original claimed amount of \$2,934.87. (Zand’s Supplemental Decl., Ex. B.) Zand’s supplemental declaration further substantiates these costs. The items appear reasonable, especially given the fixed fees for court costs, and electronic filings. The court awards \$2,855.11 in costs.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

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